

MEMORANDUM FOR FILE

SUBJECT: Sole Source/Brand Name Justification / Limited Source Justification for Use of Other than Full & Open Competition for an Acquisition under the Simplified Acquisition Threshold (SAT)

I. BACKGROUND

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available.
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.
3. This memorandum is derived from Enclosure 3, Department of Navy Simplified Acquisition Procedures Guide (April 2018) and is only applicable to acquisitions under the SAT.

II. DESCRIPTION OF ITEM OR SERVICE (include manufacture/sole source name and address)

The RDT&E software that is a component of this metrology platform package is needed.

This software is essential to the support of the ORP model currently being constructed.

The PCDMIS software will be used by engineering technicians responsible for measuring complex manufactured parts that are designed by engineers. The application imports a model file (such as one created in AutoCAD, Rhino, or SolidWorks) in the form of a IGES file (Initial Graphics Exchange Specification). The data points acquired by measuring techniques are compared to CAD models to ensure that all manufactured parts are within the allowed tolerance. This is a critical need because without this application projects could use parts that are out of tolerance. If parts are not verified using metrology techniques, the chance of having an unsuccessful test greatly increases.

MANUFACTURER: Hexagon Manufacturing Intelligence, Inc

ADDRESS: 250 Circuit Drive, North Kingstown, RI 02852 USA

III. BASIS FOR DETERMINATION FOR USE OF OTHER THAN FULL & OPEN COMPETITION

☐ **A. BRAND NAME:**

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Other Reasons:**

☒ **B. SOLE SOURCE** (select all that apply)

☐ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☒ **2. Exclusive Licensing Agreements:**

PCDMIS software, MyCare and Metrology Mentor is only available from the Original Equipment Manufacturer (OEM) Hexagon Manufacturing Intelligence, Inc., there is no other authorized distributor or technical representative for the OEM.

Hexagon Manufacturing Intelligence, Inc., the (OEM) is the sole source for all the source code and IP for PCDMIS software, MyCare and Metrology Mentor.

☐ **3. Other Reasons**

☐ **C. LIMITED SOURCE (FAR 8.405-6):**

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Other Reasons:**